

Quiz — 1.5.1 Computing Related Legislation — ANSWER SHEET

Separate answer sheet / mark scheme — keep for marking.

Answer key

Section A (1 mark each = 8)

1. **B** — Access is unauthorised; nothing was modified or further crime intended, so only Offence 1.
2. **B** — Unauthorised access *with intent* to commit a further offence (theft) is Offence 2.
3. **C** — Deploying ransomware is unauthorised *modification* of computer material, Offence 3.
4. **A** — Selling personal data with no lawful basis breaches the DPA 2018 / GDPR (the firm is the data controller).
5. **C** — Pirating software infringes the copyright holder's rights under the CDPA 1988.
6. **B** — Lawful, authorised interception by a public body is governed by RIPA 2000.
7. **C** — The individual the data is about is the *data subject* (controller decides why/how; processor acts on behalf of the controller).
8. **B** — CDPA protection is automatic on creation; no registration is required (unlike a patent).

Section B (8)

9. **[3]** (1 each): (1) Unauthorised access to computer material; (2) Unauthorised access with intent to commit or facilitate a further offence; (3) Unauthorised modification of computer material (e.g. malware/deleting/altering data). (*Accept the additional offence of making/supplying/obtaining articles for use in offences.*)
10. **[2]** Any two, 1 each: processed lawfully, fairly and transparently; collected for a specified/limited purpose (purpose limitation); adequate/relevant/not excessive (data minimisation); accurate and up to date; kept no longer than necessary (storage limitation); kept secure (integrity & confidentiality); accountability.
11. **[2]** Copyright protects the **expression** of an original work (software code, music, text) and arises **automatically** with no registration (1). A patent protects a new **invention/idea** and must be **applied for and granted** before it takes effect (1).
12. **[1]** Any one: lawfully intercept/monitor communications; demand that ISPs/communications providers give access to data; require a person to hand over encryption keys; (it also defines *who may authorise* such activity to prevent abuse).

Section C — indicative content (9)

Award marks for correctly **naming** laws/offences and **justifying** responsibility. Expect: - **Computer Misuse Act 1990** applies to the **hacker**: Offence 1 (unauthorised access) and, because they intended to sell/profit, **Offence 2** (access with intent to commit a further offence). Releasing/selling could also engage Offence 3 if data was modified. - **Data Protection Act 2018 / GDPR** applies to the **retailer** (the data controller): they failed the **integrity & confidentiality / security** principle by storing personal data **unencrypted**, so they share legal responsibility even though they were the victim of the hack. The ICO could fine them. - **CDPA 1988** is **not** the right law here (no copying of a creative work) — credit candidates who correctly *exclude* it. - **Two laws apply** because the scenario contains two distinct wrongs:

the hacker's unauthorised access (CMA) **and** the retailer's negligent handling of personal data (DPA). Naming both, with the responsible party for each, is the key discriminator.

Banded guidance (9 marks): - **1–3:** Names one law with limited/partial justification; little link to the responsible party. - **4–6:** Names both CMA and DPA, links each to a party, but justification is uneven or an offence number is missing/incorrect. - **7–9:** Accurately names CMA (with correct offence numbers) and DPA, assigns responsibility to hacker and retailer respectively, explains clearly *why* two laws apply, and correctly excludes CDPA.

Total: 8 + 8 + 9 = 25